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25STCV32164

Wasim Wisa Wasef v. Universal Protection Service, LP

Thursday,

September 24 2026

[TENTATIVE] ORDER GRANTING DEFENDANT'S MOTION TO COMPEL
ARBITRATION AND STAY ACTION (9960)

I.

BACKGROUND

The

complaint alleges that Defendant employed Plaintiff for approximately 25 years. Defendant allegedly retaliated against Plaintiff after Plaintiff took protected family leave to care for his mother. Plaintiff alleges claims in violation of THE Fair Employment and Housing Act, the California Family Rights Act, and tort claims for wrongful termination in violation of public policy and intentional infliction of emotional distress.

Defendant

previously moved to compel arbitration which the Court denied on May 19, 2026, on grounds Defendant did not establish that Plaintiff signed the agreement during the onboarding process. Additionally, Defendant sought to introduce a different physical agreement purportedly signed by the Plaintiff, which the Court declined to consider because it was new evidence filed with the reply brief and shifted Defendant's theory.

Defendant

now moves to compel arbitration based on the 2016 agreement with the “wet signature.” Plaintiff argues that the agreement is procedurally and substantively unconscionable.

II.

LEGAL STANDARDS

The court can order the parties to arbitrate the matter on petition of a party to an arbitration agreement. (Code Civ. Proc., § 1281.2). The petitioner’s burden is to establish that a valid arbitration agreement exists. The opposing party’s burden is to establish a defense to enforcement based on a preponderance of evidence. (Molecular Analytical Systems v. Ciphergen Biosystems, Inc. (2010) 186 Cal.App.4th 696, 705).

Courts apply state law to

determine who is bound by an arbitration agreement and who may enforce it. (Thomas v. Westlake (2012) 204 Cal.App.4th 605, 614, fn. 7); Rosenthal v.

Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 410 [“Because the California procedure for deciding motions to compel [arbitration] serves to further, rather than defeat, full and uniform effectuation of the federal law’s objectives, the California law, rather than section 4 of the USAA, is to be followed in California courts.”].)

Under Section 2 of the FAA,

written arbitration agreements are valid, irrevocable, and enforceable “save upon such grounds as exist at law or in equity for the revocation of a contract.” (Arthur

Andersen LLP v. Carlisle (2009) 556 U.S. 624, 629–630; 9 U.S.C.A. § 2.) Section 3 of the FAA requires the court to stay the action if it involves issues referable to arbitration. (9 U.S.C.A. § 3.).

III.

DISCUSSION

A.

Existence of an agreement to arbitrate

Defendant need only show the existence

of an agreement by a preponderance of evidence. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1058 ["as a preliminary matter the [trial] court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity."].) The moving party need only attach a copy of the agreement to the petition and incorporate it by reference. (*Id.* at 1058; Cal. Rules of Court, rule 3.1330 ["The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference."].)

Defendant

provides three pages of a six-page agreement. (*Elliott decl., Ex. A.*) The fourth page is the signature page showing that Plaintiff and Defendant signed the agreement. (*Elliott decl., Ex. A, page 4.*)

Plaintiff submits page five, which is an acknowledgement of receipt of the mutual agreement to arbitrate separately signed by Plaintiff on August 18, 2026. (*Galindo decl., at p. 5.*) Page 6 is an "acknowledgement of execution of mutual agreement to arbitrate" wherein Plaintiff separately initialed provisions of his agreement and understanding, including that he freely and voluntarily waived his right to have any employment-related claims decided by a judge and/or jury. (*Id.* p. 6)

Defendant

has established that an agreement to arbitrate exists. Plaintiff does not deny signing the agreement including the last three pages of the six-page agreement.

B.

Procedural and Substantive
unconscionability

Unconscionability

analysis has two elements, procedural and substantive, and both elements must be present in order for the Court to exercise its discretion to refuse to enforce the arbitration provision. (*De La Torre v. CashCall, Inc.* (2018) 5 Cal.5th 966, 982. In determining whether an agreement is unconscionable, the Court examines the entire bargaining process and the degree to which each element exists. No one term of the contract determines its application. (*Id.* 982-983.)

"Procedural unconscionability" exists

where there are circumstances of oppression or surprise due to unequal bargaining power exist. The court “focuses on the oppression that arises from unequal bargaining power and the surprise to the weaker party that results from hidden terms or the lack of informed choice.” (Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.) While both procedural and substantive elements must be present, they do not have to be present in the same degree. (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114 [“the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.”].)

“[T]here are degrees of procedural unconscionability. At one end of the spectrum are contracts that have been freely negotiated by roughly equal parties, in which there is no procedural unconscionability.... Contracts of adhesion that involve surprise or other sharp practices lie on the other end of the spectrum. [Citation.] Ordinary contracts of adhesion, although they are indispensable facts of modern life, are generally enforced.” (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1244.)

1)
Procedural
unconscionability

Plaintiff declares that the agreement was a contract of adhesion, in that it was offered to him by the employer on a take-it-or-leave-it basis. It was a condition of employment. An arbitration agreement is adhesive where the provision is imposed on the employee, and there is no opportunity to negotiate. (Armendariz at 115.)

The agreement to arbitrate is a contract of adhesion. The Acknowledgement of Receipt that Plaintiff signed states: “I further understand that I must sign the Mutual Agreement to Arbitrate and sign and initial the Acknowledgment of Execution of Mutual Agreement to Arbitrate and return both documents before I may begin or continue my employment with the Company.” (Galindo decl., Ex. A, p. 5.) Even if the contract is adhesive in nature, there is no element of surprise such that the contract is not subject to the “same degree of scrutiny” as contracts that involve “sharp practices.” (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1245.”

Here, Plaintiff was given the mutual

agreement to arbitrate, captioned in bold, capitalized letters; the signature line was preceded by bold capitalized terms acknowledging that the employee has read and understood the terms. Plaintiff was given a separate acknowledgement of receipt permitting Plaintiff to take the documents for review with an attorney if the employee so desired; and an "Acknowledgement of Execution" separately affirming, among many other things, that Plaintiff understood the agreement, that he was given a reasonable opportunity to consider its terms before signing, and that he freely and voluntarily waived the right to a jury. (Galindo decl., Ex. A.)

2) Substantive unconscionability

The

second element, "substantive unconscionability," is defined as the presence of overly harsh terms that are so one-sided as to "shock the conscience"

[citation]", (Prima Donna Development Corp. v. Wells Fargo Bank, N.A. (2019) 42 Cal.App.5th 22, 38.) The court considers whether the

terms are unreasonably favorable to the more powerful party. (Id.) The "paramount"

consideration in assessing [substantive] conscionability is mutuality." (Carmona v. Lincoln Millennium Car Wash, Inc. (2014) 226 Cal.App.4th 74, 85) There must be a reasonable

justification for a lack of mutuality. (Id.)

Plaintiff

contends that the agreement is signed only by Plaintiff and Defendant's representatives, requiring Plaintiff to arbitrate claims; the employee would be unlikely to succeed in enforcing the agreement against an agent who did not sign the agreement. (Opp. 11:17-18.) This does not demonstrate a lack of mutuality.

Plaintiff

cites Cook v. University of Southern California (2024) 102 Cal.App.5th 312 which found lack of mutuality where the employee was required to arbitrate any and all claims against the university, including officers, trustees and agents, but did not require the university and its related entities to arbitrate. (Id. 326.) As Defendant points out, the agreement to arbitrate is mutual, requiring "you and the Company" to arbitrate. (Galindo decl., Ex. A, p. 1.)

"Company"

is broadly defined as Universal Protection Service, LP and any of its parents, subsidiaries, or affiliated companies, and its current and former officers,

directors, agents, employees, representatives, owners, shareholders, equity sponsors, and all successors and assigns of any of them.” (Id. p. 1, sect. 3) That the agreement was signed by the Defendant’s representative does not negate the clear intent that all of Defendant’s agents, subsidiaries and affiliates would be equally bound.

Plaintiff argues that the purported agreement here is “overbroad in duration as it survives his employment and is presumably of indefinite duration since it is silent as to length of the agreement.” (Opp. 11:21-23.) This provision is not comparable to the one in Cook, which the Court found substantively unconscionable. The provision in Cook stated it shall survive the termination of Employee’s employment and may only be revoked or modified in a written document that expressly refers to the ‘Agreement to Arbitrate Claims’ and is signed by the President of the University.” (Cook at 325.)

Here, the duration of the agreement is tied to employment and termination of employment. It is limited in scope because it governs only employment-related claims. (Galindo decl., Ex. A, p.1.)

Plaintiff argues the confidentiality agreement is one-sided because “it carves enforcement of the agreement out of the purported arbitration agreement.” (Opp. 12:23-24.) The confidentiality agreement is a separate, stand-alone agreement applicable to security professionals. It is not incorporated in the arbitration agreement, and none of its terms refer to the arbitration agreement. Whether it is unconscionable standing alone is not relevant to whether the arbitration agreement is enforceable by its own terms.

Plaintiff argues the provision in the arbitration agreement requiring arbitration of sexual harassment claims is illegal. First, Plaintiff did not assert a claim for sexual harassment so it does not affect the enforceability of arbitration of Plaintiff’s other FEHA claims. Secondly, the statute on which Plaintiff relies states that a predispute arbitration agreement concerning a sexual harassment

dispute or sexual assault dispute is not valid or enforceable. (9 U.S.C.A. § 402 (West)) That statute became effective on March 3, 2022. Plaintiff

signed the arbitration agreement on August 18, 2016.

IV. CONCLUSION

Plaintiff has not met the burden of establishing that the arbitration agreement is not enforceable. Accordingly, Defendant's motion to compel arbitration is GRANTED. This action is stayed until the completion of arbitration. (Code Civ. Proc., § 1281.4.)